

#	Case Name	Tentative
		The demurrer is SUSTAINED without leave to amend as the Court has previously sustained the demurrers to the original complaint on the same grounds. Plaintiff has failed to cure the defects, and plaintiff has not articulated a plausible way for it to plead these claims successfully. MOTION TO STRIKE Defendant Green Zahn and Associates' Motion to Strike Certain Portions of the First Amended Complaint is MOOT in light of the Court's ruling on Defendant's demurrer to the second cause of action. Defendant shall file an answer within 10 days. The case management conference is continued to December 7, 2026 at 9:00 a.m. in Department C28. Defendant shall give notice of this ruling.
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56.	Leiva Lemus v. Brito Alonzo 2024- 01384391	Defendants Ruben Brito, Anabel De Brito, Floriberto Brito Alonzo, Maria Del Carmen Norato De Brito and Randi Brito's motion to set aside the March 9, 2026 order striking their answers to the complaint is GRANTED. Plaintiff's request for judicial notice is GRANTED. Defendants claim the order striking their answer arose due to "excusable neglect" in that they failed to timely update their addresses with the court and thus had no notice of (or opportunity to respond to) the subject motion to strike. They further argue that plaintiff failed to comply with the meet and confer obligations prior to filing the motion to strike, which also provides grounds for excusable neglect. Under California Code of Civil Procedure section 473(b), a court may relieve a party from an order taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect, provided the application is made within a reasonable time not exceeding six months. Courts have recognized that discretion should generally be exercised in favor of allowing parties to defend on the merits where possible. Early case law established that any doubt as to the propriety of setting aside a default should be resolved in favor of the application, and that courts should exercise discretion to promote substantial justice. <i>Bank of Haywards v. Kenyon</i> (1917) 32 Cal.App.635.

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		Here, defendants persuasively establish that the court granted plaintiff's motion to strike when plaintiff had not engaged in a meet and confer. Had plaintiff complied, defendants would have been on notice of the need to verify their answers. Under these circumstances, the court agrees that defendants' motion under section 473(b) to set aside the order striking the answer has merit. The court ORDERS the ruling from March 9, 2026 striking defendants' answer and entering default SET ASIDE. Defendants shall file their verified answer within 5 days of this order. Defendants have attached the proposed answer as exhibit A to their reply. That proposed answer must be separately filed with the court within 5 days. Defendants, however, are admonished that they must comply with legal process and procedures. California Rules of Court, Rule 2.200 requires "An attorney or self-represented party whose mailing address, telephone number, fax number, or e-mail address (if it was provided under rule 2.111(1)) changes while an action is pending must serve on all parties and file a written notice of the change." Similarly, California Rules of Court, Rule 2.251 requires a party or other person whose electronic service address changes while the action or proceeding is pending to promptly file a notice of change of address electronically with the court and must serve this notice electronically on all other parties and all other persons required to be served. Defendants did not timely advise plaintiff or the court of changed circumstances. Defendants are reminded that a self-represented litigant must expect and receive the same treatment as if represented by an attorney — no different, no better, no worse. The status conference regarding the default judgment is vacated. The case management conference is continued to December 7, 2026 at 9:00 a.m. in Department C28. The clerk shall give notice of this ruling.
57.	Logan & Logan Construction Inc. v. RRCZ Investments LLC	Cross-Defendant Logan & Logan Construction, Inc.'s demurrer to Cross-Complainant RRCZ Investments LLC's First Amended Cross-Complaint ("FACC") is SUSTAINED as to the First and Second Causes of Action and OVERRULED as to the Third Cause of Action. (Code Civ. Proc. §430.10, subd. (e). The

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	2024-01430488	special demurrer for uncertainty is OVERRULED. (Code Civ. Proc. §430.10, subd. (f).) <u>General Legal Standard on Demurrer</u> In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) Although courts should take a liberal view of inartfully drawn complaints, (see Code Civ. Proc., § 452), it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (<i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413.) Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>Special Demurrer for Uncertainty</u> Demurrers for uncertainty are disfavored. The Court will only sustain a demurrer for uncertainty if it is so poorly drafted that Defendant cannot reasonably respond. <i>Khoury v. Maly's of California Inc.</i> (1993) 14 Cal.App.4th 612, 616. Here, the Cross-Complaint is not so uncertain that Cross-Defendant is unable to intelligently respond. Any purported uncertainty in the FACC is a matter to be resolved through discovery. <u>Cause of Action No. 1--Equitable/Implied Indemnity</u> Cross-Defendant argues that this cause of action is premature as there has yet to be a determination of liability or a judgment against Cross-Complainant upon which a claim on indemnity may be based.